

Sole Source Justification and Approval Review Document
Under FAR 13.501*

(*Format follows FAR 6.303-2, but modified to reflect FAR subpart 13.5 procedures)

Program/Equipment: Personal and non-personal services sole-source bridge contract for the following skillsets: personal services (Physician Assistants, Nurse Practitioners, Licensed Vocational Nurses, Licensed Clinical Social Worker, Dental Assistants, Pharmacists, Pharmacy Technicians, Optometry Technicians, Audiology Technicians, and Phlebotomists) and non-personal services (Medical Record Clerks, Supply Technician and Personnel Credentialing Specialist), a total of 39 full-time equivalents (FTE) in support of the Soldier Readiness Program (SRP) at William Beaumont Army Medical Center (WBAMC) Fort Bliss, Texas.

Authority: 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source under the authority of the simplified procedures for certain commercial items.

Amount: \$4,746,339.48 (includes 52.217-8, "Option to Extend Services)

Prepared by:

Typed Name: Troy A. Loge Phone: 915.408.2815

Title: Contract Specialist Date: 16 January 2025

E-mail: troy.a.loge.civ@health.mil

Contracting Officer:

Typed Name: Robyn A. Villafranco DSN: 210.875.6502

Date Reviewed: 16 January 2025 E-Mail: robyn.a.villafranco.civ@health.mil

Technical Representative:

Typed Name: Bobby Chandler DSN: 915.637.2893

Title: Contracting Officer's Representative Date Reviewed: 16 January 2025

Requirements Representative:

Typed Name: Beverly A. Stephens DSN: 915.742.3771

Title: Chief, Medical Readiness SRP Date Reviewed: 16 January 2025

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(Source Selection information - See FAR 2.101 and 3.104-4)

SEP 2021

Controlled by: USAHCA

Controlled by: MRCO-W

CUI Category: Procure

Limited Dissemination Control: FED ONLY

POC: Troy A. Loge

troy.a.loge.civ@health.mil

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel

Typed Name: Frank Yoon

Phone: 801.660.0472

Signature: _____

Date: _____

Sole-Source Justification and Approval
Under FAR 13.501

1. Contracting Activity: Medical Readiness Contracting Office – West (MRCO-W), Fort Bliss Branch, Fort Bliss, Texas.

2. Description of Action: MRCO-W intends to issue a personal & non-personal services sole-source bridge contract for the following skillsets: personal services (Physician Assistants, Nurse Practitioners, Licensed Vocational Nurses, Licensed Clinical Social Worker, Dental Assistants, Pharmacists, Pharmacy Technicians, Optometry Technicians, Audiology Technicians, and Phlebotomists) and non-personal services (Medical Record Clerks, Supply Technician and Personnel Credentialing Specialist), a total of 39 FTEs in support of the SRP at WBAMC Fort Bliss, Texas. This action will be accomplished using a firm, fixed price (FFP) contract funded with Defense Health Program (DHP) funds.

3. Description of Supplies/Services: MRCO-W has a requirement to continue personal and non-personal services of the above-described skillsets. A FFP bridge contract is contemplated for a six-month base period (1 April - 30 September 2025), one six-month option (1 October 2025 – 31 March 2026) and a maximum of six months extension IAW FAR 52.217-8, for a total performance period through 30 September 2026. Estimated value for the six-month base and six-month option is \$3,164,226.32. The total estimated contract value is \$4,746,339.48 to include the extension of services, should it be needed.

4. Authority Cited: 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source under the authority of the simplified procedures for certain commercial items.

5. Reason for Authority Cited: Bridge contract W81K0024P0001 is currently in place for these personal and non-personal services at WBAMC SRP; the contract includes FAR Clause 52.217-8, Option to Extend Services and will expire 31 March 2025.

The purpose of this bridge contract is to allow time to recompet the recently terminated contract W81K0023D0001, which was protested. This will be the ninth such bridge for this purpose.

These personal and non-personal services are critical to the mission of the WBAMC SRP. Due to urgency, a sole-source bridge contract is necessary to ensure continuation of these critical services until the follow-on contract can be made effective. The IDIQ contract W81K0023D0001 was direct awarded to an 8(a) small business. A Court of Federal Claims (CoFC)-level, post-award protest was received 14 February 2023 and ultimately the contract was terminated for the government's convenience 28 March 2024. Due to the timeframe, it is impossible for a new contractor to come in and be able

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(Source Selection information - See FAR 2.101 and 3.104-4)

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to perform by the required start dated of 1 April 2025. This bridge contract will allow the government to properly solicit and award a new follow-on IDIQ contract.

There are certain barriers that would make it impossible for another source to perform the government's requirement. First, the requirement is for 14 separate specialties of 39 FTEs and the anticipated timeframe to have this many personnel on the ground and working is at least 90 days because of the amount of time it would take to recruit, credential, privilege, train, and place this many healthcare providers. Second, a lapse in service would have an immediate negative impact and mission failure in providing current health care operations and current health care services to our civilians and soldiers to properly process and deploy anywhere in the world needed to defend the nation and support of any mission set forth by the President of the United States. The incumbent contractor, Luke and Associates, Inc., can provide the required services immediately upon award of this bridge contract because Luke and Associates is the only contractor that already has all the required healthcare employees recruited, credentialed, privileged, trained and in place to perform the required services. Luke and Associates, who has since graduated the 8(a) program and is now a large business under NAICS 622110, is performing the requirements satisfactorily based on the monthly surveillance reports submitted by the contracting officer's representative (COR).

6. Efforts to Obtain Competition: Based on the need and the ongoing process of awarding the long-term contract, the required start date is 1 April 2025 for this bridge contract. The current contract will expire 31 March 2025.

a. Effective Competition: Luke and Associates, Inc. is the only vendor capable of meeting the government's urgent requirement with a start date of 1 April 2025 while the government continues re-procurement of a follow-on IDIQ contract.

b. Subcontracting Competition: In accordance with FAR Subpart 19.705-2, the Contracting Officer has taken actions to determine whether the proposed contractual obligation requires a sub-contracting plan. According to Small Business Administration (SBA) Dynamic Small Business Search (DSBS), the proposed contractor, Luke and Associates, Inc. is a large business having recently graduated the 8(a) program. A sub-contracting plan is required.

7. Actions to Increase Competition: It is not possible to compete this proposed bridge contract in time for service to commence 1 April 2025. However, MRCO-W had directly awarded W81K0023D0001 as an 8(a) set-aside for small business concerns and will compete the subsequent follow-on contract.

8. Market Research: Market research was conducted 15 January 2025 and there are capable service providers in the market who currently provide these services, however, in this instance, award to any vendor other than Luke and Associates, Inc. would be

detrimental to healthcare services with the SRP at WBAMC; resulting in unacceptable mission failure in providing current health care operations and current health care services to our soldiers and civilians to properly process and deploy anywhere in the world needed to defend the nation and support any mission set forth by the President of the United States. A vendor other than Luke and Associates currently in place and providing services would equal mission failure.

9. Interested Sources: There are interested sources for this requirement; however, these sources are not being considered for the bridge contract due to the short timeline required to certify and train staff and security clearance/background checks. Competing this requirement at this time will cause an interruption in very critical services, which could cause harm to soldiers and civilians that would not be in the best interest of the government. It will cause complete mission failure to WBAMC SRP. Luke and Associates, Inc. is currently providing services and will be able to continue performing services without disruption to the WBAMC SRP at Fort Bliss, Texas.

10. Other Facts:

a. Procurement history.

WBAMC:

Bridge – W81K0024P0001:

1. Total dollar value is \$3,548,792.33 as of modification P00010.
2. Period of performance 1 January 24 – 31 March 2025.
3. Competitive Status of these actions: N/A
4. Authority previously cited if less than full and open competition was used: FAR Clause 13.501(a)(1)(ii).
5. If a justification was prepared to support the procurement made before this one, briefly describe the circumstance justifying the procurement and whether there have been any significant changes. The requested services must be bridged because it is not possible to compete the proposed acquisition in time for services to begin 1 April 2025. The follow-on contract was awarded and underwent a CoFC-level, post-award protest, Case 23-218c, and subsequently canceled/terminated. Due to corrective action, continuing another extension is necessary. The long-term, follow-on contract will be a single-award IDIQ contract. There have been no significant changes.

6. If any prior contract for this requirement was accomplished using full and open competition, include a detailed explanation of the changed circumstances causing this action to now limit the sources. N/A

7. An explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys. N/A

8. If a justification was prepared to support procurement made before this one, briefly describe the circumstances justifying the procurement and whether there have been any significant changes. The purpose of bridge contract W81K0024P0001 is to allow time for the CoFC-level protest to be resolved and, if necessary, allow time for a contract to be solicited and awarded (Control #24-RHCO-C-101). There have not been any significant changes.

b. Other Facts. The performance work statement (PWS) for this contract is essentially the same as the PWS for the current contract and may include changes to points of contact and those required by law or regulation.

11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: Bobby Chandler Title: Contracting Officer's Representative

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: Beverly A. Stephens Title: Chief, Medical Readiness SRP

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the government for this contract action will be fair and reasonable. Fair and reasonable pricing will be determined by using price analysis and the Independent Government Estimate. As part of the basis certified cost or pricing data is not required per FAR 15.403-I(b)(3).

Signature: _____ Date: _____

Typed Name: Robyn A. Villafranco Title: Contracting Officer

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: Robyn A. Villafranco Title: Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of personal and non-personal services of the following skillsets: Personal services (Physician Assistants, Nurse Practitioners, Licensed Vocational Nurses, Licensed Clinical Social Worker, Dental Assistants, Pharmacists, Pharmacy Technicians, Optometry Technicians, Audiology Technicians, and Phlebotomists) and non-personal services (Medical Record Clerks, Supply Technician and Personnel Credentialing Specialist) a total of 39 FTEs in support of William Beaumont Anny Medical Center (WBAMC) Soldier Ready Program (SRP), Fort Bliss, Texas. This service is provided at William Beaumont Anny Medical Center (WBAMC), Fort Bliss, TX, for a six-month base and one six-month option of \$3,164,226.32 and grand total of \$4,746,339.48 to include up to six months extension of services should it be needed for this bridge contract on an other than full and open competition basis pursuant to the authority of 41 U.S.C. 1901 as implemented by FAR 13.501, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

Signature: _____ Date: _____

Typed Name: Cicely Simmons-Carroll Title: Command Advocate for Competition